

Manoj Tomar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 August 2014 · WRIT - C No. 39860 of 2014 · **Writ dismissed; liberty to represent under Clause 6.14 for instalments.**

HEADNOTE

A writ challenging a recovery citation for electricity consumption charges was dismissed. The consumer was willing to pay in instalments. Under Clause 6.14 of the U.P. Electricity Supply Code, 2005, the Executive Engineer, DGM and General Manager may extend instalment facility to a consumer in financial distress. Liberty granted to represent under Clause 6.14 within three weeks; the authority to decide in accordance with law preferably within one month.

FACTUAL SUMMARY

Manoj Tomar challenged a citation dated 12 June 2014 issued by the respondent-corporation for recovery of Rs 1,59,005 towards consumption of electrical energy. He told the Court he was ready to deposit the entire amount in instalments. Counsel for the corporation accepted notice and pointed to Clause 6.14 of the U.P. Electricity Supply Code, 2005, under which the Executive Engineer, DGM and General Manager may grant instalments to a consumer in financial distress.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for consumers in financial distress

HOLDING

Clause 6.14 of the U.P. Electricity Supply Code, 2005 empowers the Executive Engineer, DGM and General Manager to extend instalment facility to a consumer in financial distress. A writ against a recovery citation, where the consumer offered to pay in instalments, was dismissed with liberty to represent under Clause 6.14 within three weeks; the authority is to decide that representation in accordance with law preferably within one month. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION AND WHETHER INSTALMENTS SHOULD BE GRANTED

The Court did not examine the citation on merits and did not itself grant instalments; it relegated the consumer to a Clause 6.14 representation to be decided in accordance with law. ¶ 1